Note regarding the MP Letter

Background

It is a valuable skill to encapsulate a long and complex issue into a concise summary which persuades the busy reader to lend their support. The letter I drafted for D to send to her MP, Emma Dent-Coad (the MP Letter) was a successful example of such a summary.

I have settled hundreds of complex and high value disputes involving Barclays and other banks. Engaging the support of clients' MPs has always been an important part of my approach, as is well known to D.

The involvement of the client's MP can add pressure on the bank to act fairly and reasonably. In one of my first cases, I engaged the support of the Deputy Prime Minister and shortly afterwards a seven-figure compensation amount for the client was agreed. Since then, I have written dozens of letters and reports for clients' MPs, some of which have been read out in the House of Parliament.

My Contract with D specified that I would engage political support for D's claim; the Assignment was defined as including *"co-ordination with politicians"*.

The agreed strategy was set out in emails to D on 17 June 2018 and to D and her lawyers on 18 June 2018. The principal objective was to achieve compensation by negotiation. But if Barclays refused to discuss compensation, then we would threaten criminal prosecution to encourage the bank to discuss settlement. At that stage we would also bring in the MP.

On 28 June 2018, I circulated to D and her lawyers a detailed summary of D's claim against Barclays for "unlawful means conspiracy". On 10 July 2018, I handed to D (her printer was broken) an early draft of the letter to the MP, which stated that Barclays had helped to orchestrate a criminal campaign to defraud her and her children; that the bank was motivated to commit these crimes *"by its wish to profit from Mr Takieddine's connections with the Libyan regime of Colonel Muammar Gaddafi"* to escape the UK government bail-out and that consequently the bank had *"ignored normal regulatory and legal procedures because it was eager to curry favour with Mr Takieddine and, through him, with the Libyan regime."*

My 10 July 2018 draft of the MP Letter was hard-hitting and referred to Barclays' complicity in the torture of Gaddafi's opponents. But I ended that draft by warning D *"it might be better to first see how matters go with the bank via direct contact before we raise the temperature too much, e.g. by involving MPs"*.

Accordingly, CRS communicated D's claim in a 16 July 2018 letter to Barclays. The CRS letter was closely based on my draft MP Letter (the longer lawyers' letters and the shorter MP Letter were continuously developed in tandem). The CRS letter summarised Barclays' criminal conspiracy with Mr Takieddine to dissipate jointly held assets, the bank's desire to profit from links with Gaddafi and its complicity in acts of torture. The letter invited Barclays to *"discussions with a view to agreeing an amicable solution to the issue"*.

Barclays took six weeks to respond and finally did so on 30 August 2018 with a short letter from the bank's lawyers, Dentons, refusing to comment on D's assertions and declining *"discussions on the*

lines you are suggesting". On 12 September 2018, Dentons wrote to Withers declining to provide Barclays' redemption figure for Warwick House until a sale price had been agreed.

It is possible that in the interim Barclays had asked Andrew Chesser to use Withers' influence over D to persuade her to drop her claim. In any event, Chesser wrote to D on 14 August 2018 advising that the amount required to redeem Barclays charge was likely to exceed £6 million, i.e. that D's claim against Barclays had little or no prospect of success.

The claim was delayed for a couple of months while D dithered over signing CRS's engagement letter and Withers sought to involve themselves in her claim. CRS advised Withers should not be involved because of the firm's conflicted position. In the meantime, I met with Brian May and obtained his written offer to buy Warwick House, to force Barclays to indicate the redemption amount.

D asked for a consultation with me, CRS and SFQC (n.b. not Withers) to discuss the way forward. The consultation took place on 29 November 2018. My colleague Harry Farrell circulated pre-meeting notes and attached the latest draft of my MP Letter, which he described as *"a draft letter written by Nick which intends to go to Nicola's MP called Emma Dent Coad (copied to the APPG)".*

It was agreed at the consultation that (1) D would sign CRS's engagement letter, (2) Harry Farrell and I would continue to develop the long letter to Barclays' lawyers (the "Dentons Letter") setting out the evidential basis for D's claim and (3) I would update the shorter MP Letter summarising the Dentons Letter.

On 5 December 2018, I emailed to D the updated draft of my MP Letter. The letter that D eventually sent to her MP on 20 March 2019 was identical (apart from a couple of minor changes) to the draft I had emailed to her on 5 December 2018. D decided against my MP Letter in December 2018, saying the letter was great but citing the fear that alerting the MP might encourage the French authorities to seize Warwick House (as the proceeds of crime).

I continued to work on the Dentons Letter and the MP Letter during December 2018 and January 2019, sharing drafts of each with D, who discussed them with Heather Buchanan of the APPG on Fair Business Banking. For example, D emailed me on 7 January 2019 asking for comments of Simon Farrell QC and suggesting a minor edit to the MP Letter: *"Would you like to amend the 3rd paragraph from the end to say that Barclays "refuse to provide a formal redemption statement" rather than "a mortgage redemption figure" given that they have indicated a figure owed* ***since you wrote the draft****?* [my emphasis]*"*

Simon Farrell QC advised on 24 January 2019 that Barclays had engaged in a criminal fraud to defraud D and that the bank's charges may be the proceeds of crime and not enforceable by the bank. On 29 January 2019, Heather Buchanan asked me for the latest draft of the letter. I told Heather Buchanan (copying D) that we were approaching the final draft of the legal letter to Barclays' lawyers (the Dentons Letter) and confirmed that the MP letter would be based on that.

On 20 March 2019, D sent my 5 December 2018 draft of the MP Letter (virtually unchanged) to her MP Emma Dent-Coad, who forwarded it to Barclays. Barclays responded on 20 June 2019. The MP Letter achieved the complete turnaround of Barclays' position. On 30 August 2018 Barclays had flatly refused D's offer of *"discussions with a view to agreeing an amicable solution".* On 20 June 2019 Barclays said it *"would prefer to achieve a consensual solution"* and that it now wished to arrange a meeting with D's legal advisors.

Significance of the MP Letter to the current dispute

There can be no doubt that it was I who devised the strategy involving the MP and that it was I who drafted the MP Letter, which was closely based on my longer Dentons Letter. The metadata of the 18 December 2018 draft confirm as much, as does its content and language (being virtually identical to the letter finally sent to the MP), its background, the contemporaneous correspondence and its direct relationship to the longer Dentons Letter (which nobody disputes that I drafted). This table demonstrates how every point made in the MP Letter summarises the same point made in the Dentons Letter, with the latter document also containing legal analysis and documentary evidence.

The Re-Amended Defence admits (at ¶14.4.3) that the MP Letter was an effective cause of the settlement with Barclays: *"The email to the Defendant's MP was forwarded to Barclays, who became more willing to engage with the Defendant."*

At ¶23.2.6 of the Original Defence: *"It is admitted that, if the Defendant terminated the contract after the Claimant had done work pursuant to the Assignment which was an effective cause of compensation being realised, the Defendant's termination of the Contract in and of itself would not prevent the Success Fee being payable."*

It has been suggested that the above admissions would allow me to apply for summary judgment, but for the Defendant's dishonesty about the authorship of the MP Letter:

1. *"It is denied that the Claimant drafted the letter sent by the Defendant to her MP."* (¶33 of the Original Defence, repeated in the Amended Defence);

2. *"The Defendant (not the Claimant) drafted the letter to her MP, which she did send, on 20 March 2019."* (¶40.2 of the Original Defence, repeated in the Amended Defence);

3. *"On 20 March 2019, the Defendant wrote to Emma Dent-Coad MP. The Claimant had no material input into the letter sent to the Defendant's MP. The email was forwarded to Barclays, who became more willing to engage with the Defendant."* (¶43.2 of the Original Defence, repeated in the Amended Defence);

4. *"Barclays only began to engage after the Defendant (not the Claimant) contacted her MP, on the advice of the APPG."* (¶47 of the Original Defence, repeated in the Amended Defence);

5. Response to Part 18 question: Does the Defendant agree that the letter sent by the Defendant to her MP was substantially based on the Claimant's draft letters to Dentons and/or her MP? If not, why not? *"No, she does not agree, because she drafted the letter to her MP herself and did not substantially base it on the Claimant's draft letters."*

6. *"The Defendant drafted the letter to send to her MP, with the help of Heather Buchanan from the All Party Parliamentary Group on Fair Business Banking. The Claimant had no material input into the letter that was sent."* (¶8.9 of the Re-Amended Defence); and

7. *"In that context, on 20 March 2019, the Defendant wrote to Emma Dent-Coad MP. The Claimant had no material input into the letter sent to the Defendant's MP. The email to the Defendant's MP was forwarded to Barclays, who became more willing to engage with the Defendant."* (¶14.4.3 of the Re-Amended Defence).

Comment on the dishonest conduct of D and her solicitor

D's dishonesty, while regrettable, is typical of her cynical approach to litigation. D regularly lies on oath as a tactic to gain advantage over her opponents, including on at least four occasions between 2010 and 2016 as a client of Withers:

(1) 8 September 2010 (Affidavit);
(2) 15 September 2015 (sworn testimony in court);
(3) 6 July 2015 (Affidavit); and
(4) 19-27 January 2016 (testimony in court)

D got away with (1) and (2) but was criticised by the Judge in respect of (3) and (4) above.

D's solicitor, Andrew Chesser, is a partner of Withers LLP and an officer of the court. Rule 1.4 of the Code of Conduct for Solicitors states: *"You do not mislead or attempt to mislead your clients, the court or others, either by your own acts or omissions or allowing or being complicit in the acts or omissions of others (including your client)."*

Chesser is understood to have been responsible for drafting the false statements for D to sign. Chesser knew perfectly well that the statements were false. He was intimately involved at every stage of D's claim against Barclays and had repeatedly insisted on being copied into all correspondence (i.e. including the drafts of the MP Letter and the Dentons Letter). In any event, my 5 December 2018 draft of the MP Letter was included as item 10 and the Dentons Letter as item 13 on the Claimant's Initial Disclosure List, received by Withers on 2 September 2020, before Chesser drafted the false statements.